

Additional Rules for Non-Municipal Areas

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State of Bihar - Act

Additional Rules for Non-Municipal Areas

BIHAR

India

Additional Rules for Non-Municipal Areas

Rule ADDITIONAL-RULES-FOR-NON-MUNICIPAL-AREAS of 1800

Published on 1 January 1800

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[Note: The original publication document is not available and this content could not be verified.]

Additional Rules for Non-Municipal Areas

[Section 23(2)(1)]

1.

No persons shall carry night-soil or other offensive matter otherwise than in a closed receptacle.

Penalty Rs. 10

2.

No person shall dispose of or cause to be disposed of any corpse otherwise than by burning or burying it at or in some burning or burial ground specially set apart for the purpose by the Magistrate.

Penalty Rs. 10

Note.-This Rule does not apply in the case of a Muhammadan resident in the area who wishes to bury the corpse of his relations in his own private burial ground.

3.

No persons shall bathe or wash clothes or vessels on the parapet of any public well, or in any other way defile the water of such well.

Penalty Rs. 10.

4.

No pilgrim shall camp, sleep or cook his food in the open air except on private premises or at such public camping grounds as may be notified by the Magistrate.

Penalty Rs. 10.

5.

The Health Officer or Civil Surgeon may at any time enter into and inspect any market, building, shop, stall or places used for the sale or storage of articles intended for food, and may examine any such articles which may be therein. If upon examination any such articles appear to be unfit for food, he may seize the same. Upon the seizure of any such article of food as aforesaid the same may, if the owner or the person in whose possession it is found consents, be forthwith destroyed or so disposed of as to prevent its being used as food, but if the owner or possessor as aforesaid does not consent, it shall be taken at once before the nearest Magistrate or before such other Magistrate as the District Magistrate may, by a general or special order in writing direct. If it appears to such Magistrate before whom the article is produced that the same is unfit for food, he shall order the same to be destroyed or so disposed of as to prevent its being used as food, and he may further impose a penalty not exceeding Rs. 20 upon the owner or possessor of such article, such person not being merely a carrier or bailee thereof.

Places of Pilgrimage

Form A

(Application for License)

[Rule 1(ii)]

I.....the owner of house.....in the town of.....hereby request a License/Renewal of license may be granted to me under the provision of Bihar and Orissa Place of Pilgrimage Act II of 1920, for the reception of pilgrims in my said house.

Name of the street in which the house is situated
or other sufficient description of its locality.

Name of the person applying for license.

Whether sole owner of the house or not.

Whether applicant has been previously convicted
of any offence against the provision of this Act.

Number, lodgers the applicant desires to obtain
license for accommodating in his said house.

Number, description and size of apartment in
which applicant desires to accommodate lodgers.

Number of inmates now residing in applicant's
said house.

1

2

3

4

5

6

7

Iabovenamed, to declare that what is stated in the above application for a license is true to the best of my information and belief.

Signature.....

Form B

(Section 5 of the Bihar and Orissa Places of Pilgrimage Act II of 1920)

I do hereby certify that I have inspected the house mentioned in the application forwarded by you with letter/memo no.

..... dated the.....

The result of my inspection is detailed below :-

- (1)
Air space and ventilation.
- (2)
Number of pilgrims who may be accommodated (a) in whole house, (b) in each room or verandah.
- (3)
Lighting.
- (4)
Latrines and urinals.
- (5)
Water supply
- (6)
Drainage.
- (7)
Bathing accommodation
- (8)
General remarks.

Signature.....

Medical Officer of Health

Dated the.....20

Form C

License

(Rule 5)

A. B.....the owner of house no.....in the town/ village ofis hereby licensed to receive pilgrims in his said house in.....apartments thereof, subject to the provisions of the Bihar and Orissa Places of Pilgrimage Act II of 1920, the Rules thereunder issued from time to time by Government in the Ministry of Local Self-Government and the following conditions.

The Registered number of this license, upon which a fee of Rs.....has been paid, is no.....

Dated the.....20

Signature

Magistrate of.....District.

Conditions

- (1)
The license shall be produced to the Magistrate, the Medical Officer or Health or any other persons authorised to enter and inspect under Section 10 of the Act.
- (2)
The license is granted subject to the conditions prescribed in Rule 7 which is as follows :-
The owner, or in his absence the person incharge of any licensed house, shall-
 - (i)
keep one sweeper for every hundred pilgrims.
 - (ii)
provide open kerosene tins, tarred within and without at the rate of one for every ten pilgrims for the collection of rubbish and refuse;
 - (iii)
cause the living rooms, verandahs, and court yards to be swept and cleaned daily and the collections of rubbish and refuse to be removed;
 - (iv)
cause all wells attached to the licensed house to be thoroughly cleaned once a year, and except in the case of covered wells fitted with a pump, shall have all wells disinfected at such time and in such manner as the Magistrate shall prescribe;

(v)

cause all latrines, urinals, drains, cesspools and receptacles for rubbish to be cleaned daily;

(vi)

display on a conspicuous part of the main entrance of the house a ticket showing in red letters not less than six inches in height-

(a)

the registered number of license;

(b)

the number of pilgrims which the house is licensed to accommodate;

(vii)

display in a conspicuous place on the lintel of each room or on the posts of each verandah licensed for the accommodation of pilgrims a ticket showing the number of pilgrims for which it is licensed;

(viii)

report immediately to the nearest police-station all cases of serious illness and all deaths Occurring in the licensed house. Information shall be sent immediately by the officer in charge of the police-station to the Medical Officer of Health;

(ix)

afford assistance to the Medical Officer of Health or his assistants in removing the sick persons, if necessary to hospital and in getting the house disinfected.

The Schedule

Rates at which the fee payable upon each license granted for the various places under the Bihar and Orissa Places of Pilgrimage Act, 1920 (Bihar and Orissa Act II of 1920), shall be calculated.

Names of places

Fees.

I. Gaya district-

(1) Gaya town

..

Re. 1 for each lodger.

(2) Moranpur

..

}

Annas 12 for each lodger.

(3) Baksu Bigha

..

II. Santhal Parganas district-

(1) Deoghar

..

}

Annas 8 for each lodger.

(2) Jasidih Bazar

..

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